



Notification Waiver Determination

Community Enterprise Queensland - Island & Cape Community Stores (Aurukun, Hope Vale & Badu)

Acquisition	Community Enterprise Queensland (CEQ) applied for a notification waiver in respect of its proposed acquisition of the operating businesses of the Aurukun Supermarket, Hope Vale Local Store, and Badu Island Community Store from the Arnhem Land Progress Aboriginal Corporation (ALPA), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	4 August 2026

Parties to the Acquisition	The acquirer, CEQ, is a Queensland Government statutory body established under the <i>Aboriginal and Torres Strait Islander Communities (Justice, Land and Other Matters) Act 1984</i> (Qld). CEQ operates not-for-profit retail stores in remote Aboriginal and Torres Strait Islander communities under the IBIS and ABIS brands, supplying groceries, fresh produce, household goods, hardware, café/takeaway services, and fuel. The vendor, ALPA, is an Aboriginal corporation registered with the Australian Charities and Not-for-profits Commission. ALPA operates community stores through its Island & Cape division across Cape York and the Torres Strait in each of Aurukun, Hope Vale, and Badu Island, supplying similar goods and services to CEQ's retail stores.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. There is no horizontal overlap between CEQ and ALPA in the retail supply of groceries and fuel on a local basis, as their respective stores are in separate remote communities located significant distances from one another. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. The

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	ACCC considers that there is a low likelihood of the Acquisition meeting the thresholds for notification. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act